

## **Our proposed House of Lords amendment to the Public Office (Accountability) Bill**

### **EXPLANATORY STATEMENT**

This amendment would include members of the UK's four legislatures within the duty of candour and offence of misleading the public, safeguard parliamentary privilege and political opinion, treat certain communications by legislators, Ministers and mayors as official, and treat undermining public confidence, including over war, elections and referendums, as harm.

50 words

### **THIS IS WHERE THE AMENDMENT GOES**

Schedule 2, page 53, line 17, at end insert—

### **EQUAL ACCOUNTABILITY ACROSS UK LEGISLATURES**

(14) Subject to sub-paragraph (2), “public official” also includes a member of either House of Parliament, the Scottish Parliament, Senedd Cymru or the Northern Ireland Assembly.

### **SAFEGUARDING FREEDOM OF POLITICAL EXPRESSION AND DEBATE**

(15) Neither section 5 nor 12 applies to anything said or done in proceedings of any Parliament or legislative assembly in the United Kingdom, and outside those proceedings, a person does not commit either offence merely by expressing an honestly held political belief or opinion.

### **DEMOCRATIC VOICE AS A PUBLIC FUNCTION**

(16) For the purposes of sub-paragraph (2) and section 12, a person within sub-paragraph (14), the Mayor of London, a mayor for the area of a combined authority or combined county authority, a Minister of the Crown, a member of the Scottish Government, a junior Scottish Minister, a member of the Welsh Government or a Minister or junior Minister within the meaning of the Northern Ireland Act 1998 is treated as acting in their capacity as a public authority or public official, as applicable, and exercising their functions as such when communicating with the public, by any means, about matters of significant concern to the public, including public policy, national security, public expenditure, the allocation of public assets or resources, legislative or democratic processes, and the environment. Section 12(4) does not apply to that person in respect of such a communication. This sub-paragraph does not apply to communications made in a judicial capacity or concerning solely a person's private life, family life or private business. In this sub-paragraph, “the public” has the same meaning as in section 12.

#### WHAT COUNTS AS HARM

(17) For the purposes of section 12, “harm” also includes undermining the confidence of the public in public authorities, public officials, the exercise of public functions or democratic processes by misleading the public, including in order to—

(a) take the United Kingdom to war or into other military action,

(b) influence the result of an election,

(c) influence the result of a referendum,

(d) conceal the causes of, or responsibility for, a disaster or other event involving death or serious injury,

(e) conceal a risk to public health or safety, or

(f) conceal wrongdoing by a public authority or public official, including a breach of the law or of rules, or the misuse of public money.